

[Balochistan High Court]

Judges: Hon'ble Justice Shaukat Ali Rakhshani



Hayatullah S/O Abdul

versus

The State Through Prosecutor General

**LEGALITY OF CONVICTION UNDER PECA 2016 AND PPC FOR
TRANSMISSION AND CREATION OF OBSCENE CHILD VIDEO.**

Crl. Revision Petition No. 107 of 2021, Crl. Revision Petition No. 117 of 2021
decided on 29th August, 2022.

(a) Prevention of Electronic Crimes Act, 2016---S.22(1), S.22(1)(a)(d), S.45; Pakistan Penal Code, 1860---S.34, S.109; Criminal Procedure Code, 1898---S.342, S.94, S.Article 510---Legality of conviction under PECA 2016 and PPC for transmission and creation of obscene child video.---

The prosecution proved the indictment against the petitioners beyond doubt. The court upheld the conviction and sentences, but reduced Hayatullah's substantive sentence to one year, holding him responsible solely for transmission, not creation, of the obscene video.

Court can uphold conviction where forensic and circumstantial evidence establish guilt; in cases of child pornography, creation and transmission of obscene content attract different levels of culpability; forensic science reports are admissible under Art. 510 CrPC.

Relied upon: UMER KHAN V. STATE 2022 SCMR 216

Referred to: PLJ 1994 CR.C Lahore 473; PLD 2008 Quetta 1; 2020 YLR 195; ALI HAIDER ALIAS PAPU V. JAMIL HUSSAIN ETC Crl. Appeal No.436 of 2017 and capital sentence Reference No.61 of 2017

M/s Rehmatullah Barrech, Zakir Kakar, Mr. Jamil Ahmed Babai for Appellant.

*M/s Muhammad Afzal Harifal, Muhammad Raees for Respondent.
Mr. Anwar-ul-Haq, Assistant Attorney General, Mr. Hameedullah Babar, Assistant
Director FIA for Department.*

The captioned criminal revision petitions being meritless are dismissed in the above terms.

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JUDGMENT SHEET

IN THE HIGH COURT OF BALOCHISTAN QUETTA.

Crl. Revision Petition No.107 of 2021

(CC-100107403888)

Hayatullah v. The State.

Crl. Revision Petition No.117 of 2021

(CC-100107404100)

Nizamuddin v. The State.

In Crl. Revision Petition No.107 of 2021.

Date of hearing. 23.8.2022 Announced on 29.8.2022 Petitioner by: M/s Rehmatullah Barrech & Zakir Kakar, Advocates.

Complainant by: M/s Muhammad Afzal Harifal & Muhammad Raees, Advocates.

Respondent-State by: Mr. Mr. Anwar-ul-Haq, Assistant Attorney General & Mr. Hameedullah Babar, Assistant Director FIA.

In Crl. Revision Petition No.117 of 2021.

Date of hearing. 23.8.2022 Announced on 29.8.2022 Petitioner by: Mr. Jamil Ahmed Babai, Advocate.

Respondent-State by: Mr. Mr. Anwar-ul-Haq, Assistant Attorney General & Mr. Hameedullah Babar, Assistant Director FIA.

JUDGMENT

Shaukat Ali Rakhshani, J. A verdict of guilt was recorded emanating from FIR No.01-2020 (Ex.P/6-A) registered within the dominion of FIA, Cyber Crime Reporting Centre ("CCRC") Quetta on the basis of Inquiry No.76 of 2019 dated 27th May of 2019 initiated on the complaint of Khabir Ahmed under section 22(1) (a)(d) of Prevention of Electronic Crimes Act, 2016 ("PECA of 2016") read with section 34,

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109 of Pakistan Penal Code, 1860 ("PPC") by Judicial Magistrate-VII FIA Cyber Crimes, Quetta ("Trial Court") rendered on 30th August 2021, whereby the petitioners were convicted and sentenced under section 22(1) of PECA of 2016 read with section 34 PPC to suffer three (03) years RI with fine of Rs.45,000/- each payable to victim Rehmatullah as compensation in terms of section 45 of PECA of 2016, which was endorsed in appeal by Sessions Judge, Quetta ("Appellate Court") on 17th September 2021.

As the captioned revision petitions stems from common judgment, therefore, both the petitions are decided together through this consolidated judgment.

2. Unfurled facts of the case are that crime report bearing No.01/2020 dated 24th January 2020 initiated on the application (Ex.P/1-A) of complainant Khabir Ahmed (PW-1) transpires that on 22nd May 2019 at 11:30 pm, petitioner-convict Hayatullah transmitted an obscene clip of his nephew Rehmatullah age 11 being sexually abused from his Facebook ID Uniform Resource Locator ("URL") <http://www.facebook.com/hayatullahghori.hayatullahghori> to complainant (PW-1) Facebook ID <http://www.facebook.com/khabir.afghan.90>. Thus, Hayatullah was arrested on 24th January 2020, who during interrogation identified the person indulged in sexual act with the minor as petitioner-convict Nizamuddin; petitioner Hayatullah was booked and sent up to Trial Court to face the deeds of his crime, therefore, he was charged on

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15th February 2020 under the offences punishable under section 22(1)(a)(d) PECA of 2016; in the meanwhile, Nizamuddin was arrested on 7th October 2020. After entering into the plea of denial, the prosecution to bring home charge produced six witnesses and on close of the prosecution side, both the petitioners were examined under section 342 of the Criminal Procedure Code of 1898 ("CrPC"), who refuted the allegations and pleaded innocence. However, none of them stepped into the witness box nor led defence.

3. Learned counsel for the petitioners individually and collectively *inter alia* contended that both the judgments impugned herein being perverse suffers from misreading and non-reading of the material evidence, which makes the same liable to be set-aside. Added further that absence of recovery of the cellular phone of complainant Khabir Ahmed (PW-1) has made the forensic report (Ex.P/4-A) inadmissible and irrelevant, whereupon no explicit reliance can be placed for holding the petitioners guilty of the offences as indicted. While augmenting his arguments, urged that as the case of the prosecution is based upon circumstantial evidence and the prosecution has failed to substantiate the chain of events necessary for proving the indictment, thus, the judgments impugned herein merits to be set at naught and consequentially the petitioners are entitled to be acquitted of the charge. Reference were made to the

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cases reported in PLJ 1994 CR.C Lahore 473 and [PLD 2008 Quetta 1, 2020 YLR 195](#).

Conversely, learned AAG and Assistant Director FIA concurring with one and the other vigorously opposed the contentions so raised by learned counsel for the petitioners and defended the impugned judgments to be based on proper appreciation of evidence. Further maintained that testimonies of Khabir Ahmed (PW-1) and victim (PW 5) coupled with deposition of other circumstantial evidence has been corroborated by the forensic report, leaving no any room for other view except the guilt of the petitioners, henceforth, prayed for dismissal of the petitions in hand.

4. Heard. Record vetted and pondered upon with the able assistance of learned counsel for the adversarial parties. Carefully and anxiously the entire evience has been scanned and have analyzed. The statement of Khabir Ahmed (PW-1), who before the court reiterated what he had narrated in his application (Ex.P/1-A), particularly, with reference to receipt of obscene clip of his nephew being sexually exploited by petitioner Nizamuddin, sent by petitioner Hayatullah from his Facebook ID i.e. URL <http://www.facebook.com/hayatullahghori.hayatullahghori> to him (PW-1) at his Facebook ID i.e. URL <http://www.facebook.com/khabir.afghan.90>.* During cross-examination, while replying to question No.53 Khabir Ahmed (PW-1) denied the suggestion that Usman (PW-3) deceitfully

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in the absence of petitioner Hayatullah by using his ID from his mobile sent an obscene clip in question to Khabir Ahmed (PW-1). If this is the case, then it amounts to admission of the fact that from the ID of petitioner Hayatullah by using his mobile phone sent whereafter the obscene clip to complainant Khabir Ahmed (PW-1), there remains no further responsibility on the shoulder of the prosecution to prove the same. However, even otherwise the prosecution has proved such factum by circumstantial evidence in form of recovery of mobile set from petitioner Hayatullah, confirming the transmission of the said obscene clip so retrieved from his mobile, corroborating further from the facebook business record procured in terms of section 94 CrPC (Art.P/2-10 to Art.P/2-20), which were produced by Shoaib Amin ASI (PW-2) affirming that the ID of petitioner Hayatullah mentioned above is registered in the name of Hayatullah Ghouri Musakhail and SIM used by him was found to be active. Forensic report affirms the existence of sexually explicit video with screenshot recovered from the mobile SAMSUNG having IMEI #359661090775111, whereafter no further doubt remains in respect of the video clip found in the mobile phone registered in the name of petitioner Hayatullah and being used by him in the crime so indicted. Regarding admissibility of the report, reference can be placed upon the judgment rendered in

Crl. Appeal No.436 of 2017 and capital sentence Reference No.61 of 2017 titled as ALI HAIDER ALIAS PAPU V.

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JAMIL HUSSAIN ETC, wherein forensic science report has been held to be *per se* admissible as enunciated under Article 510 CrPC without examining Forensic Analyst by the court.

5. Now, coming to the role of petitioner Nizamuddin who has been found to be seen in the video clip sexually abusing Rehmatullah (PW-5), has rightly been dealt with in contravention of section 22(1)(a)(d) of PECA of 2016 as he has created sexually explicit content with a child, which has been proved to the hilt by the prosecution. The extracted images whereof produced by Masood Ahmed IP (PW-4) as Art.P/4-12 to Art.P/4-13, showing petitioner Nizamuddin with victim Rehmatullah (PW-5) were identified with no doubt. Rehmatullah victim (PW-5) himself appeared in the court and categorically stated that his neighbor petitioner Nizamuddin took him to his house where petitioner forcibly sexually abused him and made his video clip and warned him not to tell anybody, otherwise it would not be better for him as his family would be dishonoured, thus he kept quite until the video clip reached to his uncle Khabir Ahmed (PW-2). In such circumstances, the delay in FIR caused is condonable as in our society, victims and their loved ones are usually reluctant to report the matters due to religious, social taboos and moral constraints.

6. The apex Court in the case of UMAR KHAN V. STATE ([2022 SCMR 216](#)) with great concern has observed that “We have

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noticed that one of the most alarming social evil prevailing in the society is child pornography. It has created a havoc in society as it contains a great threat to morality and the future of children. One of the reason for the rise of child abuse/rape cases is squarely because of child pornographic content. The concerns regarding child sexual abuse and exploitation have been prevailing in the society in the past also. However, due to various factors, the gravity and impact of the offense of child pornography is increasing at an alarming rate and this menace needs to be curbed with iron hands.”

7. Upshot of the above discussion is that the prosecution has successfully and undoubtedly proved the indictment against the petitioners, who have been rightly convicted and sentenced and so endorsed by the courts below, thus, irresistibly, I am also convinced to uphold the impugned judgments as no illegality or perversity including misreading and non-reading of the evidence has been noticed.

However, so far the role of the petitioner Hayatullah is concerned, there is no evidence on record that he has played any role in the creation and making of the obscene video clip nor there is evidence that on his abetment or connivance the

video clip has been made by petitioner Nizamuddin. So, in the attending circumstances, his role appears to be of transmitting the video clip onward to Khabir Ahmed (PW-2) and no one else, therefore, taking lenient view, the

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sentence awarded to him is reduced from three years to one year, whereas the sentence of fine shall remain intact.

Citations referred by learned counsel for the petitioners have been gone through but they do not apply to the facts and circumstances of the instant case, thus, are distinguished. 8. In view of the above discussion and to secure the ends of justice, I believe that the judgments impugned herein have been rendered in accordance with law and by proper appreciation of evidence, suffering from no infirmity and as such I am unable to interfere with and disturb the judgments impugned herein.

Thus, the captioned criminal revision petitions being meritless are dismissed in the above terms.

Announced in open Court: Judge This 29th day of August 2022.

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